

9:00 A.M.

Calendar Lines # 4

Case Name Cecilia Marosi vs William Milks, III et al.

Case No. 25CV462150

Motion to Compel Compliance with Previous Court Order Regarding Discovery and Sanctions

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

On March 26, 2025,¹ Plaintiff Cecilia Marosi filed a Complaint alleging a legal malpractice, breach of fiduciary duty, and financial elder abuse against her former attorney Defendant Williams Milks, III who represented her and former spouse, Gilbert Marosi (Complaint). In 2013, Gilbert Marosi purchased a forest report on Almaden Road (“Twin Creeks”) for \$5 million and the title of Twin Creeks was transferred into a living trust of Gilbert and Cecilia Marosi (“Trust”), who are the beneficiaries. (Declaration of Edward T. Colbert, p. 2). In 2016 situations on the property resulted in interventions from government agencies. The tenants of Twin Creek filed a civil lawsuit that were eventually settled. (*Id.*). In 2018, Twin Creeks was sold to Midpeninsula Open District (“Midpen”) for \$2.8 million. (*Id.*). In 2021, Gilbert Marosi met with attorney William Milks, III, the plaintiff alleges that at the time, the defendant had no experience with complex land-use transactions. (*Id.*, at p. 3). In August 2022, the defendant filed a civil complaint against Fidelity National Title Company (“Fidelity”) on behalf of Gilbert Marosi (Santa Clara County docket No. 22CV402440)² that was verified by Gilbert Marosi. (*Id.*). In October 2022, Defendant filed a third lawsuit against TriCourt Bank on behalf of Gilbert Marosi and the plaintiff (Santa Clara County docket 22CV406644). The TriCourt Bank Complaint was verified by Gilbert Marosi alone. (*Id.*). The plaintiff states that the Fidelity suit was filed without her authorization to represent her in such cases and did not obtain consent to file any litigation in her name. (*Id.*).

B. RELEVANT PROCEDURAL BACKGROUND

On June 11, 2025, the propounded discovery, including Request for Production (“RFPD”), set one on the defendant. The plaintiff sought to obtain a complete case file of cases in Santa Clara County including dockets: 21CV388981 (Midpen); 22CV402440 (Fidelity); and 22CV406644 (TriCo) through request for production numbers 10-12. On July 11, 2025, Defendant served responses. Plaintiff averred that the responses to RFPD Nos. 10-12 were deficient, boilerplate objections, and evasive. Plaintiff argues that she is entitled to the electronically stored information (“ESI”) in RFPD Nos. 10-12 as the requests are narrowly tailored to seek ESI documents that comprise of the plaintiff’s client file, which the defendant is ethically obligated to release to Cecilia Marosi pursuant to Rule of Professional Conduct, Rule 1.16(e). After meet-and-confer attempts were unsuccessful, the plaintiff filed a motion to compel further responses to its RFPD, set one, Nos. 10-12 and requested sanctions in the amount of \$5,400.00. Defendants opposed the motion on March 9, 2026 and explained extenuating health circumstances and agreed to provide objection free responses. On March 19, 2026 the Court heard oral argument and ordered that the defendant provide responses to RFPD Nos. 10-12 and ESI withing 14 days of the hearing. The Court denied the request for \$5,400.00 in sanctions, but awarded sanctions in the amount of \$2,000.00 in favor of the plaintiff and ordered that the defendant pay the sanctions within 14 days of the hearing. A formal Order was signed on April 6, 2026.

On May 13, 2026, Plaintiff Cecilia Marosi filed a motion to compel Defendant William Milks, III to comply with the April 6, 2026 court order compelling discovery and sanctions. The plaintiff filed the motion pursuant to Code

¹ The Court identifies a typographical error in its March 19, 2026 tentative order that lists the wrong year the Complaint was filed as March 26, 2026. The Complaint was filed on March 26, 2025.

² The Fidelity case (Santa Clara County docket No. 22CV402440) was consolidated with a previous action filed against Midpen (Santa Clara County docket No. 21CV388981). The Midpen docket was designated as the lead case.